

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #14	CCRB Case #: 201603721	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 04/28/2016 10:25 PM	Location of Incident: 110th Street and 91st Avenue, 102nd Precinct stationhouse	18 Mo. SOL 10/28/2017	Precinct: 102
Date/Time CV Reported Fri, 04/29/2016 5:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/29/2016 5:39 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Chan	00293	946849	102 PCT
2. POM Nicholas Salamone	11661	949602	102 PCT
3. SGT Philip Scarglato	05300	900632	102 PCT
4. SGT Bryan Sorrells	00998	947504	102 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Fusco	1799	960559	REC TNG
2. POM Kevin Killela	05471	956798	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Chan	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM William Chan	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan frisked § 87(2)(b)	B . Exonerated
C . POM Nicholas Salamone	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer Nicholas Salamone frisked § 87(2)(b)	C . Exonerated
D . SGT Bryan Sorrells	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Sergeant Bryan Sorrells frisked § 87(2)(b)	D . Exonerated
E . POM William Chan	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . POM Nicholas Salamone	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer Nicholas Salamone searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Exonerated

Officer(s)	Allegation	Investigator Recommendation
G . SGT Bryan Sorrells	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Sergeant Bryan Sorrells searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Exonerated
H . POM William Chan	Abuse: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan drew his gun.	H . Unsubstantiated
I . POM William Chan	Discourtesy: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan spoke discourteously to § 87(2)(b)	I . Unsubstantiated
§ 87(4-b) § 87(2)(g)		
K . SGT Philip Scarglato	Abuse: On April 29, 2016, at the 102nd Precinct stationhouse, Sergeant Philip Scarglato did not process § 87(2)(b)'s complaint regarding officers.	K . Unsubstantiated

Case Summary

On April 29, 2016, § 87(2)(b) filed the following complaint via telephone with the CCRB.

On April 28, 2016, at approximately 10:25 p.m. § 87(2)(b) was driving § 87(2)(b) and § 87(2)(b) at the intersection of 110th Street and 91st Avenue in Queens. As § 87(2)(b) turned, traffic was blocked by an unmarked RMP. Police Officer William Chan, Police Officer Nicholas Salamone and Sergeant Bryan Sorrells of the 102nd Precinct exited the RMP. PO Chan approached allegedly stopped § 87(2)(b)'s vehicle and asked all three occupants to exit (**Allegation A**). PO Chan allegedly frisked § 87(2)(b). PO Salamone allegedly frisked § 87(2)(b) and Sgt. Sorrells allegedly frisked § 87(2)(b) (**Allegations B, C and D**). PO Chan, PO Salamone and Sgt. Sorrells allegedly searched § 87(2)(b)'s vehicle (**Allegations E, F and G**). PO Chan allegedly unholstered his gun and joked that he found a gun in the vehicle (**Allegation H**). PO Chan issued § 87(2)(b) and § 87(2)(b) summons (BR 01) and allegedly spoke discourteously to him (**Allegation I**). PO Salamone issued § 87(2)(b) a summons for § 87(2)(b) (BR 25; BR 26). § 87(2)(g), § 87(4-b)
On April 29, 2016, § 87(2)(b) and his mother § 87(2)(b) travelled to the 102nd Precinct stationhouse to file a complaint against PO Chan. Sergeant Philip Scarglato allegedly refused to process § 87(2)(b)'s civilian complaint (**Allegation K**).

No video footage was available for this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined the option of mediation.
- As of June 28, 2016, there has been no Notice of Claim filed with the NYC Comptroller's office regarding this incident (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) and § 87(2)(b) do not have any prior CCRB complaints (BR 05; BR 06; BR 23).
- PO Chan has been a member of the NYPD for 7 years and has 3 prior complaints with 4 allegations (see officer history). No allegations were substantiated § 87(2)(g) [REDACTED].
- PO Salamone has been a member of the NYPD for 5 years and does not have any prior CCRB complaints (see officer history).
- Sgt. Sorrells has been a member of the NYPD for 7 years and has 1 prior complaint with 2 allegations (see officer history). This complaint was mediated.

- Sgt. Scarglato has been a member of the NYPD for 24 years and has 3 prior complaints with 4 allegations (see officer history). No allegations were substantiated § 87(2)(g) [REDACTED].

Potential Issues

- One of the victims, § 87(2)(b) [REDACTED] was unable to provide a statement to the CCRB. A telephone number was provided by § 87(2)(b) [REDACTED] for § 87(2)(b) [REDACTED] and five contact attempts were made to this number (BR 07; BR 08). No further contact information was provided for § 87(2)(b) [REDACTED] by § 87(2)(b) [REDACTED]. A LexisNexis/CLEAR search for this number returned negative results (BR 09). § 87(2)(b) [REDACTED] summons listed an address and two letters were mailed to this address. On July 11, 2016, LexisNexis and Clear searches resulted in two additional potential phone numbers for § 87(2)(b) [REDACTED] (BR 27). On July 11, 2016, and July 13, 2016, contact attempts made to these phone numbers resulted in the determination that they were wrong numbers.
- PO Salamone was unable to provide any memo book entries because his memo book was damaged in a plumbing accident in the basement of the 102nd Precinct stationhouse. PO Salamone provided documentation of this accident at his CCRB interview (BR 22).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) [REDACTED] stated that on April 29, 2016, at approximately 5:30 p.m. he travelled with § 87(2)(b) [REDACTED] to the 102nd Precinct stationhouse to file a complaint against PO Chan (BR 07). § 87(2)(b) [REDACTED] said he spoke with an officer who matched the pedigree information of Sgt. Scarglato, who was identified to him as a Desk Sergeant. § 87(2)(b) [REDACTED] stated that on April 29, 2016, at approximately 6 p.m. she travelled with § 87(2)(b) [REDACTED] to the 102nd Precinct stationhouse to file a complaint against PO Chan (BR 10). § 87(2)(b) [REDACTED] said that she spoke with an officer who matched the pedigree information of Sgt. Scarglato. Sgt. Scarglato acknowledged being assigned as Desk Sergeant at the 102nd Precinct stationhouse during the time when § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] allege they attempted to file a complaint (BR 11). § 87(2)(g) [REDACTED].

Allegation A – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan stopped the vehicle in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were occupants.

It is undisputed that § 87(2)(b) [REDACTED]'s vehicle was stopped. According to § 87(2)(b) [REDACTED] when he turned from 110th Street onto 91st Avenue in Queens he observed a black Impala blocking traffic (BR 07). § 87(2)(b) [REDACTED] extended his arm and motioned for the car to turn, but it did not. The Impala then moved towards § 87(2)(b) [REDACTED]'s car and started its turret lights. PO Chan, PO Salamone and Sgt. Sorrells exited the Impala. PO Chan told § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] to exit the car and go to the back of the vehicle. § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] all exited the vehicle, left the doors open behind them and stood behind the car's trunk. § 87(2)(b) [REDACTED] remembered that a summons was issued for either § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] but could not recall who or what for.

§ 87(2)(g) [REDACTED] (BR 12). As officers approached § 87(2)(b) [REDACTED]'s vehicle, Sgt. Sorrells said, "They smoke weed" and PO Chan said, "Yo, get out the car" and directed all three to back of § 87(2)(b) [REDACTED]'s vehicle. Later, PO

Salamone confiscated a small amount of weed from the vehicle, which § 87(2)(b) believed to be § 87(2)(b) s. § 87(2)(b) later received § 87(2)(b) summons.

According to PO Chan, he was standing with Sgt. Sorrells and PO Salamone outside an unmarked RMP near the corner of 110th Street and 91st Avenue after the conclusion of a prior car stop (BR 13). PO Chan smelled a strong odor of marijuana coming from § 87(2)(b) s vehicle, which was stopped approximately five to ten feet away with its windows halfway down. PO Chan approached this vehicle with both PO Salamone and Sgt. Sorrells. PO Chan spoke with § 87(2)(b) in the driver seat, and smelled alcohol when he was close to the vehicle door. PO Chan stated of the vehicle occupants, “I think they were smoking weed and drinking.” He stated that the vehicle occupants replied only, “No” when asked about both the odor and the physical presence of marijuana. Officers requested that the vehicle occupants step out of their vehicle.

According to PO Salamone, he was standing with PO Chan and Sgt. Sorrells outside an unmarked RMP on 110th Street in regards to a prior car stop (BR 14). § 87(2)(b) s vehicle made a right turn onto 110th Street and stopped approximately ten feet away from the officers. PO Salamone observed that § 87(2)(b) s vehicle had dark-tinted windows and an aroma of marijuana emerged from its partially opened windows. Officers stopped the vehicle via verbal commands. § 87(2)(b) handed PO Salamone a grinder with marijuana residue inside of it through the window. PO Salamone asked, “Is that’s all that inside the vehicle?” § 87(2)(b) said, “Yes, that’s it.” All three occupants exited the vehicle, were placed against rear bumper of vehicle.

§ 87(2)(g) Sgt. Sorrells said the reason for the stop was suspicion of marijuana and the tinted windows he observed driver’s side of the vehicle. PO Chan approached the car to stop it with a flashlight. Sgt. Sorrells does not remember PO Chan using any verbal commands except maybe “Stop.” PO Salamone and Sgt. Sorrells did not assist in the stop. As Sgt. Sorrells walked towards the car he smelled marijuana coming from the windows of the vehicle. Sgt. Sorrells said to PO Salamone that he observed a male in the rear seat of the car and a black metal grinder. § 87(2)(b) handed the grinder to PO Salamone. Sgt. Sorrells, PO Chan, and PO Salamone asked all occupants to step out of the car, one at a time. As they stepped out of the car, Sgt. Sorrells, PO Chan, and PO Salamone took their IDs and had the men stand by the back bumper.

The odor of marijuana is sufficient, by itself, to provide probable cause to search a car and its occupants. *People v. Robinson*, 130 A.D.3d 421 (2013) (BR 16). *People v. Smith*, 66 A.D.3d 514 (2006) (BR 17).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan frisked § 87(2)(b)

Allegation C – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer Nicholas Salamone frisked § 87(2)(b)

Allegation D – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Sergeant Bryan Sorrells frisked § 87(2)(b)

§ 87(2)(b) did not allege a frisk in his CCRB testimony (BR 07).

According to § 87(2)(b) Sgt. Sorrells conducted a "soft patdown" on the side of § 87(2)(b)'s body and jacket pocket (BR 12). § 87(2)(b) was patted down by PO Chan and § 87(2)(b) was patted down by PO Salamone.

According to PO Chan, he patted down § 87(2)(b)'s waistband and pants pockets (BR 13). PO Chan could not recall whether there was a bulge on § 87(2)(b)'s person, or if anything was recovered from his pockets. PO Chan stated that marijuana was found in the coat of one of the vehicle occupants; later he stated that he was not sure where the marijuana was found.

According to PO Salamone, he frisked § 87(2)(b)'s pockets and waistband area (BR 14). PO Chan frisked § 87(2)(b) and Sgt. Sorrells frisked § 87(2)(b). When asked why the individuals were frisked for weapons, PO Salamone said, "They were moving around a lot in the back so I wanted to make sure there were no weapons for my safety and theirs." PO Salamone said that as officers were approaching the vehicle he observed § 87(2)(b) putting his hands in his pockets. Nothing was found from these frisks. PO Salamone said he was unsure if anything was recovered from § 87(2)(b) or § 87(2)(b).

According to Sgt. Sorrells, he frisked § 87(2)(b) (BR 15), PO Chan frisked § 87(2)(b) and PO Salamone frisked § 87(2)(b). All three frisks consisted of patting down the occupants' pants pockets to make sure there was no further contraband on them and that there were no weapons in the car for their own safety.

The odor of marijuana is sufficient, by itself, to provide probable cause to search a car and its occupants. *People v. Robinson*, 130 A.D.3d 421 (2013) (BR 16). *People v. Smith*, 66 A.D.3d 514 (2006) (BR 17).

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Therefore, it is recommended that **Allegations B, C and D** be closed as **exonerated**.

Allegation E – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan searched the vehicle in which § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation F – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer Nicholas Salamone searched the vehicle in which § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) were occupants.

Allegation G – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Sergeant Bryan Sorrells searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

According to § 87(2)(b) all three officers searched his vehicle (BR 07). § 87(2)(b) could not observe what areas Sgt. Sorrells searched. PO Salamone searched the vehicle's trunk and PO Chan searched the front passenger side of the vehicle.

According to § 87(2)(b) Sgt. Sorrells and PO Chan searched § 87(2)(b)'s vehicle (BR 12). Sgt. Sorrells searched "the whole car" but § 87(2)(b) could not specify where.

According to PO Chan, he and PO Salamone searched § 87(2)(b)'s vehicle (BR 13). PO Chan searched the driver's side seat and floor and in "the immediate area." PO Salamone searched the passenger side of the car and backseat of the vehicle. PO Chan did not recall whether the trunk or the glove compartments were searched.

According to PO Salamone, Sgt. Sorrells searched § 87(2)(b)'s vehicle (BR 14). Sgt. Sorrells searched the front passenger area, while PO Salamone and PO Chan did not search the vehicle. PO Salamone did not recall if the trunk was searched by any officer. PO Salamone stated that the vehicle was searched for weapons and contraband because marijuana was recovered from the vehicle. When asked what led to his suspicion of weapons, PO Salamone said, "When they're moving around in the backseat, we had to take that into account, when you're moving around and it looks like you're hiding something we have to take that into account."

According to Sgt. Sorrells, PO Chan searched § 87(2)(b)'s vehicle (BR 15). PO Chan searched the front seat, front consoles, space behind the front seat, and rear seat of the car to see if there was any additional contraband and if the men hid anything in the back. PO Chan did not search the trunk or the glove box. No additional contraband was found.

The odor of marijuana is sufficient, by itself, to provide probable cause to search a car and its occupants. *People v. Robinson*, 130 A.D.3d 421 (2013) (BR 16). *People v. Smith*, 66 A.D.3d 514 (2006) (BR 17).

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegations E, F and G** be closed as **exonerated**.

Allegation H – Abuse of Authority: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan drew his gun.

Allegation I – Discourtesy: On April 28, 2016, at 110th Street and 91st Avenue in Queens, Police Officer William Chan spoke discourteously to § 87(2)(b)

According to § 87(2)(b) PO Chan asked if there were weapons in the car. PO Chan then walked over to the open passenger's side door of the car and called out to § 87(2)(b) "Hey boss, I thought you said you didn't have anything in the car, why do you have a gun in the car?" and allegedly waved a gun in the air. § 87(2)(b) repeatedly told the officers that the gun was not his. § 87(2)(b) then saw PO Chan holster the gun he was previously brandishing, leading § 87(2)(b)

§ 87(2)(b) to conclude that the officer had been waving his service weapon. PO Chan then told all three occupants to get back into the car, which they complied with. PO Salamone and Sgt. Sorrells returned to the RMP. PO Chan asked § 87(2)(b) "Do you like Coronas?" § 87(2)(b) replied that he did not drink. PO Chan allegedly replied, "Are you fucking stupid? Do you not understand what I'm asking you?" § 87(2)(b) again said he did not drink. PO Chan began telling § 87(2)(b) that if he was just drinking then it would be a lot easier because he would just pay a \$25 fine to the court and not have to see a judge.

According to § 87(2)(b) Sgt. Sorrells picked up a toolbag in § 87(2)(b)'s car and said he found a knife (BR 12). § 87(2)(b) could not recall PO1's exact statement, and there was no knife in the toolbag. PO Chan then started searching the vehicle, reholstered his gun and said, "Look -- what's this?" PO Chan said there was a gun in the car. Sgt. Sorrells said to PO Chan, "Don't play like that." After summonses were issued, PO Chan said, "You guys keep getting caught with weed and shit, why don't you just drink? If you drink you just get an open container ticket and you don't have to go through the court system." § 87(2)(b) did not observe PO Chan unholster his gun.

According to PO Chan, § 87(2)(b) told him that he did not smoke marijuana or drink (BR 13). PO Chan denied having a conversation about finding a gun or looking for a gun in the car. PO Chan stated that he usually asks whether passengers have weapons and he recalled that officers asked all three vehicle occupants about weapons, but did not recall their answers. PO Chan denied unholstering his weapon and stated that there was no need to do so. PO Chan denied asking § 87(2)(b) whether § 87(2)(b) enjoyed Coronas. PO Chan denied, and later did not recall, asking § 87(2)(b) "Are you fucking stupid, do you understand what I'm asking you?" PO Chan did not hear any officers use profanity.

According to PO Salamone he did not have a conversation with PO Chan about a gun in the vehicle (BR 14). Sgt. Sorrells did not have a conversation with any of the stopped individuals about them having a gun. PO Chan and PO Salamone at no point claimed to have found a gun in the vehicle, and PO Chan did not unholster his gun. PO Salamone did not hear PO Chan say to § 87(2)(b) "Are you fucking stupid?" PO Salamone did not recall any officer using any profanity with any of the stopped individuals.

According to Sgt. Sorrells, he did not remember any conversation about any of the stopped men having a gun on them (BR 15). Sgt. Sorrells did not remember that PO Chan unholstered his weapon or claimed to find a gun inside the car. Sgt. Sorrells did not remember if PO Chan talked about Coronas with any of the men in the car. Sgt. Sorrells did not hear PO Chan say to § 87(2)(b) "Are you fucking stupid? Do you not understand what I'm asking you?" Sgt. Sorrells did not hear PO Chan use profanity or claim to discover a gun during the stop.

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Allegation K – Abuse of Authority: On April 29, 2016, at the 102nd Precinct stationhouse, Sergeant Philip Scarglato did not process § 87(2)(b)'s complaint regarding officers.

According to § 87(2)(b) he travelled with § 87(2)(b) to the 102nd Precinct stationhouse to make a complaint about the incident on April 29, 2016 at approximately 5:30 p.m. (BR 07). An officer at the front desk told § 87(2)(b) they were calling the sergeant to come speak with him, and Sgt. Scarglato listened to § 87(2)(b)'s verbal description of the incident. § 87(2)(b) asked Sgt. Scarglato if there were any complaint forms and Sgt. Scarglato responded that they “did not have those there.” Sgt. Scarglato offered for § 87(2)(b) to return the next day and speak to PO Chan, and § 87(2)(b) told Sgt. Scarglato that he did not want to do so. Sgt. Scarglato kept telling § 87(2)(b) that there was nothing he could do, and if he wanted to come tomorrow and speak with PO Chan than he could. § 87(2)(b) said no, Sgt. Scarglato told him okay and that he could go to court to settle the ticket. § 87(2)(b) then left the stationhouse.

§ 87(2)(g) (BR 10). Upon arriving at the stationhouse, Sgt. Scarglato said that PO Chan had just left the stationhouse. Sgt. Scarglato asked § 87(2)(b) for her name and said he would hear § 87(2)(b)'s complaint. § 87(2)(b) left her name and number with the officers and requested a complaint form to make a written complaint. § 87(2)(b) never received a call from any officer and never received a complaint form with which to file a complaint. No officer transcribed any of § 87(2)(b)'s or § 87(2)(b)'s complaint at any time. § 87(2)(b) did not recall if any officer she spoke with was a sergeant. § 87(2)(b) did not recall if any officer offered to § 87(2)(b) to meet with PO Chan, and did not remember the entirety of § 87(2)(b)'s conversation with officers. § 87(2)(b) had received hip surgery before her phone interview and said the details of the incident were difficult to remember.

According to Sgt. Scarglato, he was the Desk Officer at the 102nd Precinct stationhouse at the time of occurrence (BR 11). Sgt. Scarglato did not recall any complainant attempting to file a complaint during this tour, nor any complaint against PO Chan. Sgt. Scarglato did not know the name of complainant § 87(2)(b) and did not recognize a photo of § 87(2)(b) when presented it. Sgt. Scarglato did not have an independent recollection of which officers he worked with on this tour. Sgt. Scarglato was familiar with PO Chan. Sgt. Scarglato did not direct PO Chan to meet with any individuals. Sgt. Scarglato was unfamiliar with the vehicle stop involving § 87(2)(b) and PO Chan. When asked if he ever offers complainants seeking to file a complaint to meet the officer of their complaint, Sgt. Scarglato said no.

According to PPO Stephen Fusco, he was assigned to the desk at the 102nd Precinct stationhouse during the tour when § 87(2)(b) and § 87(2)(b) travelled to the stationhouse to file this complaint (BR 18). PPO Fusco did not recall any civilians coming in to file a complaint, nor taking a complaint from § 87(2)(b) nor anyone filing a complaint against Officer Chan.

When asked if he worked with Sgt. Scarglato, PPO Fusco said because he was still learning names at the precinct, he didn't know which sergeant he worked with. PPO Fusco was shown a photo of Sgt. Scarglato, and PPO Fusco said he saw Sgt. Scarglato at the desk at the 102nd Precinct stationhouse. PPO Fusco did not recall any civilian interactions between Sgt. Scarglato and civilians trying to file a complaint.

According to PO Kevin Killela, he was assigned as T/S operator during this tour (BR 19). PO Killela did not recall any civilians coming in to file a complaint, nor taking a complaint from § 87(2)(b) and his mother, nor anyone filing a complaint against Officer Chan. When asked if he was familiar with an incident taking place with PO Chan involving a vehicle stop, PO Killela did not recall. When asked if he worked with Sgt. Scarglato, PO Killela said, "He is one of the sergeants that worked my tour, I cannot confirm whether or not he was there." PO Killela confirmed that the Desk Sergeant he worked with on April 29 with was not Sgt. Christopher Winiarz. PO Killela denied observing Sgt. Scarglato refuse to process any civilian complaint.

§ 87(2)(g)

It is therefore recommended that § 87(2)(b) be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date